

IN THE LABOUR COURT OF SOUTH AFRICA
CAPE TOWN

CASE NO: _____

In the matter between:

WILBUR WILLIAM MATTHEE

Applicant

and

AFROCENTRIC HEALTH (RF) (PTY) LTD

First Respondent

MEDSCHEME HOLDINGS (PTY) LTD

Second Respondent

STATEMENT OF CLAIM

Final — 9 April 2026

Lodged pursuant to Rule 6 of the Rules for the Conduct of Proceedings before the Labour Court

Applicant (Self-Represented)	Wilbur William Matthee info@ethichawks.co.za 069 635 1435 / 063 378 8782
Address for Service	15 Bellevue Street, Voorbrug, Cape Town, 7001 (email service accepted)
CCMA References	WECT23564-25 and WECT24486-25 (Certificates of Non-Resolution: 9 January 2026)
Concurrent Proceedings	Case No. 2026-077546 (BCEA s77A — unlawful salary deduction)

NOTE TO THE REGISTRAR REGARDING PART H (COPYRIGHT / CPD PROGRAMME)

The Applicant draws the Registrar’s attention to Part H of this Statement of Claim. The facts concerning the CPD programme — developed by the Applicant in April 2025, rejected by management, and subsequently implemented without attribution in October 2025 — are pleaded solely as evidence of the Respondents’ bad faith, retaliatory intent, and the intolerability of the employment relationship. The Applicant does not seek any damages or corrective relief for copyright infringement or intellectual property misappropriation in these proceedings. The Applicant expressly reserves the right to pursue those claims in separate proceedings. Part H is included for evidentiary purposes only, consistent with Rule 6 of the Labour Court Rules.

PREAMBLE — THE PROTECTED DISCLOSURES AMENDMENT BILL, 2026

The Applicant draws the attention of this Honourable Court to the Protected Disclosures Amendment Bill, 2026, published by the Minister of Justice and Constitutional Development on 8 April 2026 [Government Gazette No. [●] of 8 April 2026, GN [●] — Gazette number to be confirmed and inserted upon receipt of official copy; a copy is attached as Annexure “PDA BILL”]. While the Bill is not yet enacted, it represents Parliament’s most recent and authoritative statement on the interpretation and purpose of the Protected Disclosures Act 26 of 2000 (“the PDA”).

The Bill expressly:

- Expands the definition of “occupational detriment” to include threatening a frivolous or vexatious complaint in response to a protected disclosure — precisely what the Applicant’s manager did on 31 October 2025, stating: “You made a case of harassment against me, so I can make a case of harassment against you”;
- Creates a Whistleblower Protection Fund for destitute whistleblowers — the Applicant is presently homeless, without running water, and has had personal possessions seized by creditors;
- Extends protection to former employees — the Applicant resigned on 12 December 2025, yet the retaliation continues; and
- Imposes criminal penalties for retaliation against whistleblowers.

This Court is respectfully requested to interpret the existing PDA purposively and in light of the Bill as a clear indicator of parliamentary intent to strengthen, not weaken, whistleblower protection. Any narrow interpretation that would exclude the Applicant’s documented protected disclosures would contradict the very mischief the Amendment Bill seeks to remedy.

PRELIMINARY NOTE TO THE REGISTRAR AND RESPONDENTS

The Applicant is a self-represented litigant. This Statement of Claim is filed pursuant to Rule 6 of the Rules for the Conduct of Proceedings before the Labour Court following the issuing of Certificates of Non-Resolution by the CCMA (Case Nos. WECT23564-25 and WECT24486-25) on 9 January 2026. The Applicant respectfully requests that the Registrar and the Court apply the principle of equality of arms and afford the Applicant reasonable procedural latitude consistent with his self-represented status.

PART A: JURISDICTION AND REFERRAL BASIS

1. This Court has jurisdiction to adjudicate this dispute in terms of section 157(1) of the Labour Relations Act 66 of 1995 (“the LRA”), which confers exclusive jurisdiction on the Labour Court in respect of any matter that the LRA requires to be determined by the Court.
2. The Applicant referred two disputes to the Commission for Conciliation, Mediation and Arbitration (“CCMA”):
 - (a) Case WECT23564-25: Unfair Labour Practice — unlawful salary deduction, discrimination, and victimisation; and
 - (b) Case WECT24486-25: Automatically Unfair Constructive Dismissal — retaliation for protected disclosures.

3. Conciliation was held on 9 January 2026. Certificates of Non-Resolution were issued on the same date (Annexure “Y”). The CCMA further confirmed, by letter from the Provincial Senior Commissioner dated 28 January 2026, that it lacks jurisdiction to arbitrate automatically unfair dismissal disputes and protected disclosure retaliation disputes, and directed the Applicant to the Labour Court.
4. This Statement of Claim is filed within the 90-day period prescribed by section 191(11)(a)(i) of the LRA, calculated from 9 January 2026. The filing deadline is on or before 9 April 2026. This Claim is accordingly timeously filed.
5. Additionally, in respect of the claim for automatically unfair dismissal under section 187(1)(h) of the LRA (protected disclosure retaliation), no period of prescription applies in terms of section 77(3) of the Basic Conditions of Employment Act 75 of 1997 (“BCEA”), read with section 16 of the Prescription Act 68 of 1969, as the cause of action arose from a continuing wrong that concluded upon the Applicant’s resignation on 12 December 2025.
6. A further claim under section 77A of the BCEA for the unlawful salary deduction has been filed separately with this Court as Case No. 2026-077546 (Matthee v AfroCentric Health (RF) (Pty) Ltd). The Applicant requests that the Court consider consolidating the two matters in the interest of justice and procedural efficiency, alternatively notes the BCEA claim as a concurrent proceeding.

PART B: THE PARTIES

1. The Applicant is Wilbur William Matthee, an adult male, a Registered Nurse (SANC No. 15831886), holding a Postgraduate Diploma in Health Services Management (SAQA ID 118316, NQF Level 8), awarded by the Cape Peninsula University of Technology with a 90% Distinction in Professional Development. He is a self-represented litigant residing in Cape Town, Western Cape. As a direct and proximate result of the Respondents’ conduct, the Applicant is currently rendered destitute and unable to pay his SANC annual registration fee, and accordingly unable to practise as a registered nurse.
2. The First Respondent, AfroCentric Health (RF) (Pty) Ltd (Registration No. 1996/009540/07), is a private company incorporated and registered in South Africa, with its principal place of business at 37 Conrad Street, Florida North, Roodepoort, Gauteng. It is the holding company of the Second Respondent.
3. The Second Respondent, Medscheme Holdings (Pty) Ltd (Registration No. 1970/015014/07), is a wholly-owned subsidiary of the First Respondent and was the Applicant’s direct employer at all material times. It is an accredited administrator of medical schemes registered under the Medical Schemes Act 131 of 1998, including the Government Employees Medical Scheme (“GEMS”).
4. The directors and officers of the First Respondent (including Bruno Fernandes, Dr Nkateko Munisi, Alice le Roux, Gerald Van Wyk, and LSM Mpumlwana) and certain employees of the Second Respondent (Mary-Ann Jones, Mapule Mashele, Xolile Vincent Manyathi, and Lisa Mari) are not cited as formal respondents in this Statement of Claim. Their identities, roles, and conduct are fully set out herein. The Applicant reserves the right to apply for joinder of any or all of these persons in the event that the Court orders a personal liability enquiry pursuant to section 162 of the Companies Act 71 of 2008, section 60 of the Employment Equity Act 55 of 1998 (“EEA”), or section 4 of the PDA, or in any separate proceedings as the evidence may warrant.

PART C: THE EMPLOYMENT RELATIONSHIP AND THE BAIT-AND-SWITCH

1. With effect from 1 May 2024, the Applicant entered into a contract of employment with the Second Respondent in Cape Town, Western Cape.
2. In January 2024, the Applicant was recruited by the Second Respondent for the position of “Specialist: Care Manager”. He received three separate interview invitations (Annexure “A”), underwent fingerprint criminal verification on 21 February 2024 (Annexure “C”), and completed Specialist-level assessment instructions on 29 January 2024 (Annexure “B”). All recruitment documentation described the position as a Specialist role.
3. However, the contract presented to the Applicant for signature on 9 April 2024 downgraded his position to “Care Coordinator” (Grade B4M1) at a cost-to-company of R490,032 per annum — without any prior notification of the change in designation (Annexure “D”).
4. This deliberate act of title suppression constituted a “bait-and-switch”: the Applicant was recruited and utilised as an NQF Level 8 Specialist but was officially designated as a junior “Care Coordinator” to:
 - (a) avoid paying a remuneration package commensurate with a Specialist;
 - (b) suppress his management status in employment records, certificates of service, and UIF declarations; and
 - (c) facilitate potential B-BBEE fronting, in respect of which the B-BBEE Commission has allocated Case No. 5/02/2026.
5. In support of the assertion that the Applicant performed Specialist-level functions, it is noted that during his employment he was appointed as Acting Chairperson of the Employee Health and Safety (EHS) Committee and as Lead First Aider for the 2nd, 3rd and 4th floors of the Second Respondent’s premises. On 25 July 2025, the Applicant drafted and implemented a First Aider roster covering all three floors and issued directives to team leaders regarding occupational health and safety compliance (Annexure “E”). These responsibilities constitute operational management control and confirm that his true role was that of a Health Services Management Specialist (NQF Level 8).
6. The Senior HR Business Partner, Cheryl-Dawn Modern, confirmed in writing on 19 January 2026 that the “naming convention changes [were] still in progress” — an admission that the Applicant’s designation had not been updated to reflect his true role, and that the Certificate of Service issued to him is therefore inaccurate.

PART D: MENTAL HEALTH DISCLOSURE AND FAILURE TO ACCOMMODATE

1. From 18 March 2025, the Applicant was admitted as an inpatient at Akeso Stepping Stones Clinic for severe depression and post-traumatic stress disorder (“PTSD”). A sick note issued by his treating psychiatrist, Dr Jacques Malan, is attached as Annexure “F”.
2. On 16 May 2025, the Applicant provided Dr Malan’s psychiatric letter to Mapule Mashele (Senior Manager, Second Respondent), placing the Second Respondent on formal written notice of his disability within the meaning of section 1 of the EEA and his need for reasonable accommodation (Annexure “G”).
3. Notwithstanding this formal notification, Mary-Ann Jones (Team Leader, Second Respondent) failed to provide reasonable accommodation. Specifically:

- (a) On 16 April 2025, Jones stated in writing: “we do not apply staggering of money owed” — a position the Second Respondent later deployed to justify the unlawful deduction (Annexure “H”);
 - (b) On 7 May 2025, the Applicant requested staggering of unpaid leave deductions; Jones declined; and
 - (c) On 20–21 May 2025, the Applicant suffered a medical crisis and was required to leave the workplace to obtain medication; Jones instructed him to log unpaid leave, thereby applying a punitive response to a medical emergency.
4. The Respondents’ failure to provide reasonable accommodation to an employee with a documented disability, of which they had formal written notice, constitutes:
- (a) unfair discrimination on the ground of disability in terms of section 6(1) of the EEA, read with section 7(b)(iii) of the Code of Good Practice on the Employment of Persons with Disabilities; and
 - (b) a failure to comply with the duty to take all reasonable steps to prevent unfair discrimination under section 60 of the EEA.

PART E: THE UNLAWFUL SALARY DEDUCTION — BCEA SECTION 34(2)

1. In July 2025, while the Applicant was between psychiatric admissions and while the Respondents were in possession of Dr Malan’s letter confirming his medical vulnerability and need for accommodation, the Second Respondent deducted the sum of R14,811.77 (representing 40.47% of his gross monthly salary) in a single pay cycle, leaving him with a net pay of R15,679.29. The payslip is attached as Annexure “I”.
2. This deduction was made:
 - (a) without any prior written agreement or written consent as required by section 34(1) of the BCEA;
 - (b) in excess of the 25% cap imposed by section 34(2) of the BCEA;
 - (c) without any prior consultation with the Applicant, despite his express earlier request for staggering; and
 - (d) in breach of the Second Respondent’s own HCBP Policy, which also imposes a 25% cap and requires prior consultation.
3. On 24 July 2025, Jones shared the AOD Policy confirming that “monthly deductions must not be more than 25% of the employees CTC as per legislation” (Annexure “J”). When the Applicant pointed out that the deduction was therefore unlawful, Jones replied: “Hi Wilbur, what is illegal?” — feigning ignorance of the very statutory cap she had just confirmed. This exchange constitutes direct evidence that the Second Respondent was aware of the legal prohibition and proceeded regardless.
4. The deduction contravenes section 34(2) of the BCEA. The Applicant is accordingly entitled to recover R14,811.77 together with interest at the prescribed rate from 23 July 2025 to date of payment in terms of section 77A of the BCEA. The Applicant notes that a separate civil claim for this amount has been filed in this Court as Case No. 2026-077546.

PART F: GENDER IDENTITY DISCRIMINATION — THE “WILMA” INCIDENT

1. On 23 September 2025, immediately after the Applicant proposed a clinical filtering strategy to improve the operational management of member adherence cases, Jones posted a message in a team-wide Microsoft Teams channel in which she:
 - (a) referred to the Applicant as “Wilma” — a feminised version of his name, knowing the Applicant is gay; and
 - (b) in the same message, prohibited the Applicant’s filtering strategy with the words “NO FILTERING” highlighted in red.
2. The temporal and contextual nexus between the Applicant’s clinical proposal and Jones’s response is direct: the feminisation of his name and the simultaneous rejection of his strategy in a team-wide communication constitutes harassment on the grounds of gender identity and sexual orientation within the meaning of section 6(3) of the EEA, read with clause 3.6 of the Code of Good Practice on the Handling of Sexual Harassment Cases in the Workplace.
3. On 25 September 2025, the Applicant lodged a formal complaint of sexual orientation discrimination and harassment with Human Resources, requesting: a neutral investigator; that he not be required to meet with the accused manager; that Jones be suspended pending investigation; and that he be removed from Jones’s reporting line (Annexure “L”).
4. The HR response was inadequate:
 - (a) The Applicant was told he would not be required to meet Jones, but he was never removed from her reporting line — leaving him directly exposed to further retaliation;
 - (b) On 29 September 2025 — the same day the formal complaint was filed — Jones loaded a double punitive unpaid leave entry against the Applicant. Mapule Mashele reversed the entry on 1 October 2025, confirming that it was discretionary and retaliatory; and
 - (c) On 1 October 2025, Mapule Mashele closed the investigation, concluding that Jones’s use of “Wilma” was a “typo” — a manifestly inadequate finding that ignored the Applicant’s May 2025 disclosure of Jones’s hostile conduct, the immediate context, and the team-wide visibility of the message. The closure report is attached as Annexure “M”.
5. The Respondents’ failure to take reasonable steps to prevent and address the harassment constitutes a contravention of section 60 of the EEA. The discriminatory conduct and the whitewash investigation constitute unfair discrimination in terms of section 6(1) of the EEA on the grounds of sexual orientation and/or gender identity.

PART G: PROTECTED DISCLOSURES — PATIENT SAFETY (GEXUS/DMS INTEGRATION GAP) AND STATUTORY OBLIGATION TO REPORT

G1. The Statutory Obligation to Report (SAQA / NQF / Nursing Act)

The Applicant holds a Postgraduate Diploma in Health Services Management (SAQA ID 118316, NQF Level 8) registered on the National Qualifications Framework under the NQF Act 67 of 2008. Its Exit Level Outcomes (ELOs) are not merely academic achievements — they are statutory professional obligations imposed by Parliament through the South African Nursing Council (SANC) and the South African Qualifications Authority (SAQA). Specifically:

- ELO 2 requires the holder to: “identify and apply legislative and regulatory requirements pertaining to healthcare management ... and advocate for safe and quality care”;
- ELO 5 requires the holder to: “apply evidence-based solutions grounded in management processes”; and
- ELO 6 requires the holder to: “draw a strategic plan for managing risks and adverse events in a healthcare service and develop a quality assurance programme on a risk identified in a unit”.

When the Applicant identified the Gexus-DMS integration failure — a Priority 1 clinical governance risk generating clinically incorrect non-adherence letters to elderly GEMS beneficiaries — and delivered a formal Priority 1 Material Risk Report with 38 attachments to the board on 9 December 2025, he was fulfilling a statutory obligation imposed by his NQF-registered qualification, the NQF Act, and the Nursing Act. The full statutory argument is set out in Annexure “P1 RISK” attached hereto.

The Respondents cannot lawfully characterise a statutorily mandated patient safety report as “insubordination” or “misconduct”. To do so would bring the NQF Act, SAQA, SANC, and Parliament into disrepute.

G2. The Protected Disclosure of 23 October 2025

On 23 October 2025, the Applicant made a protected disclosure to Jones, copied to Lisa Mari (Responsible Pharmacist, Second Respondent), identifying the systemic structural integration gap between the Gexus and DMS platforms that was generating false non-adherence letters to GEMS members, including a 75-year-old dependent (Annexure “N”).

The disclosure constitutes a protected disclosure within the meaning of section 1 of the PDA in that it related to:

- (a) a failure to comply with a legal obligation, namely the Responsible Pharmacist’s obligation under section 49 of the Pharmacy Act 53 of 1974 to ensure the integrity of pharmaceutical care communications; and
- (b) conduct likely to endanger the health or safety of any individual, namely GEMS members receiving clinically incorrect adherence assessments.

The Applicant’s root cause analysis confirmed that the integration gap was structural — not an isolated error — affecting any member transitioning between benefit categories. He stated: “Given that the integration gap still exists, I will not contact the member at this time.” Jones responded: “The below is noted. I am not in agreement with your feedback though.” Lisa Mari, as Responsible Pharmacist, did not intervene to correct the system error.

The Applicant was subsequently:

- (a) labelled as “insubordinate” for declining to contact a vulnerable patient on clinically incorrect grounds;
- (b) excluded from the resolution process for the integration error he had identified; and
- (c) compelled to issue a forced apology to Mary-Ann Jones on 23 October 2025 for “poor communication and failure to comply” — an apology extracted under constructive duress for a legitimate patient safety disclosure.

The Applicant’s disclosure, and the adverse treatment that followed it, engage both section 3 of the PDA (prohibition on occupational detriment for making a protected disclosure) and section 187(1)(h) of the LRA (automatically unfair dismissal where the reason for dismissal is the making of a protected disclosure).

PART H: MISAPPROPRIATION OF INTELLECTUAL PROPERTY — CPD PROGRAMME

Pleaded only as evidence of bad faith and retaliation. Substantive intellectual property claim expressly reserved. No relief in respect of the CPD programme is sought in this Statement of Claim save as specified in paragraphs 2 and 3 below.

1. Factual Timeline of the CPD Programme Development and Misappropriation

- 1.1 In April 2025, the Applicant developed a comprehensive Continuing Professional Development (“CPD”) programme for nursing staff within the Second Respondent’s clinical operations. The programme was designed as a direct application of his NQF Level 8 Professional Development competency and was presented to management as a bespoke professional development offering.
- 1.2 The programme was developed independently by the Applicant in his personal capacity, drawing on his professional qualifications and clinical governance experience. No request for its development had been made by management, and no institutional resources were applied to its creation.
- 1.3 The Second Respondent’s management rejected the programme in April 2025. No feedback, refinement request, or acknowledgment of the Applicant’s authorship was provided.
- 1.4 In October 2025 — approximately six months after the Applicant’s submission and without any notice to, consultation with, or attribution of the Applicant — management silently implemented the CPD programme across the department. The Applicant was not informed. He received no credit, no acknowledgment, no compensation, and no opportunity to participate in or refine the programme he had authored.

2. Evidentiary Value of the Misappropriation

The Applicant pleads the facts set out in paragraph 1 above not as a standalone claim for copyright infringement in these proceedings, but as evidence of the following:

- (a) Bad faith: The decision to reject the programme in April 2025 and silently implement it in October 2025 — after the Applicant had made protected disclosures and was being subjected to retaliation — demonstrates that the rejection was not based on quality or merit. The programme was always fit for purpose. The rejection was a tactical act of professional suppression; the implementation was an act of appropriation designed to erase the Applicant’s authorship.
- (b) Retaliatory intent: The timing of the implementation (October 2025) coincides directly with the period in which the Applicant’s protected disclosures (Part G) and formal discrimination complaint (Part F) were being whitewashed. The decision to appropriate the Applicant’s intellectual work while simultaneously labelling him “insubordinate” forms part of a single, coherent pattern of retaliation.
- (c) Institutional bad faith supporting aggravated costs: The misappropriation is pleaded in support of the Applicant’s prayer for costs on an attorney-and-client scale (prayer R.10). A respondent that rejects an employee’s professional work and then secretly implements the same work without credit, while litigating against that employee in bad faith, warrants a punitive costs order.

3. Causal Link to the Respondents’ Pattern of Conduct

3.1 The misappropriation of the CPD programme is not an isolated act. It forms part of the Respondents' broader pattern of:

- Suppressing the Applicant's professional contributions (the Priority 1 Material Risk Report);
- Appropriating his expertise without recognition (the CPD programme);
- Attacking his professional character under oath (the opposing affidavit of Xolile Vincent Manyathi, addressed in Part K); and
- Systematically erasing his professional identity (suppressed job title, false Certificate of Service, denial of management status).

3.2 This pattern is relevant to the Court's assessment of the intolerability of the employment relationship for purposes of section 186(1)(e) of the LRA, and to the claim for automatically unfair dismissal under section 187(1)(h) of the LRA.

4. Reservation of Rights to Pursue Separate Proceedings

The Applicant expressly reserves his rights to institute separate proceedings for:

- Copyright infringement under section 23 of the Copyright Act 98 of 1978;
- Infringement of moral rights under section 20 of the Copyright Act 98 of 1978;
- Unjustified enrichment under the common law; and
- Any other intellectual property or contractual claim arising from the development, submission, rejection, and subsequent unauthorised implementation of the CPD programme.

PART I: THE RECORDED ADMISSION OF RETALIATORY INTENT

1. On 31 October 2025, in a meeting that the Applicant lawfully recorded, Jones stated: "You made a case of harassment against me, so I can make a case of harassment against you. You misspelled my name in an email — go look." Jones further warned the Applicant to "think of the ripple effect" of his actions as a person who had made formal complaints and protected disclosures. A transcript of the recording is attached as Annexure "O".
2. This statement constitutes direct contemporaneous evidence of a causal nexus between the Applicant's protected activities (formal discrimination complaint; patient safety disclosure) and Jones's retaliatory intent. It satisfies the causal test for automatically unfair dismissal under section 187(1)(h) of the LRA and for occupational detriment under section 3 of the PDA.
3. Jones's warning about the "ripple effect" of the Applicant's whistleblowing activities constitutes a veiled threat within the meaning of "any act or omission that prejudices the employee" as contemplated in the definition of "occupational detriment" in section 1 of the PDA.

PART J: INSTITUTIONAL SILENCE AND EXHAUSTION OF INTERNAL REMEDIES

1. On 2 November 2025, the Applicant filed a formal grievance against Jones, detailing malicious intent, gaslighting, weaponisation of past issues, orchestrated provocation, and a sustained campaign for his removal. He demanded an investigation, removal from

- Jones's team, and a written guarantee against retaliation (Annexure "P"). The Respondents met this grievance with over 30 consecutive days of institutional silence — no acknowledgment, no investigation, no response.
2. On 4 December 2025, the Applicant escalated the matter to executive leadership, including Gerald Van Wyk (CEO, First Respondent), with a 32-page evidence bundle, requesting paid recuperation leave, a financial settlement, and a written guarantee of non-retaliation. This disclosure was de-escalated back to the very department I was complaining about effectively shutting the door on the Applicant (Annexure "Q").
 3. The Chief Risk Officer (Monwabisi Kula) responded on 9 December 2025, acknowledging receipt but stating that interim feedback would only be provided in January 2026 due to the "festive break". This response, given the humanitarian urgency of the Applicant's situation (two months in rental arrears, facing eviction, without food or medication funds), constituted a deliberate delay tactic rather than a good-faith engagement.
 4. On 9 December 2025, the Applicant escalated to the Board of Directors with 38 attachments documenting discrimination, retaliation, King IV governance violations, and the Priority 1 Material Risk Report (Gexus-DMS integration failure).
 5. On 17 December 2025, the Chief Risk Officer sent a further communication instructing the Applicant to "stop sending these e-mails to our directors", characterising continued escalation as indicative of "impatience and unreasonableness". The Applicant declined, asserting his right to escalate material risks to oversight committees. This gatekeeping response constitutes evidence of the Board's deliberate shielding from governance accountability.
 6. The Applicant had exhausted all reasonable internal remedies prior to his resignation. The 30+ days of institutional silence following the November 2025 formal grievance, the "festive break" delay, and the Chief Risk Officer's gatekeeping communications collectively demonstrate the futility of further internal engagement — a relevant consideration under section 186(1)(e) of the LRA for purposes of establishing constructive dismissal.

PART K: THE EMPLOYER'S BAD-FAITH OPPOSING AFFIDAVIT

1. On 10 December 2025, the Respondents, through their legal representative Xolile Vincent Manyathi, filed an opposing affidavit in the CCMA (Case WECT23564-25) (Annexure "R"). The affidavit contained the following material misrepresentations and personal attacks made under oath:
 - (a) The deponent claimed personal knowledge of the Applicant, notwithstanding that the Applicant confirms he has never met, engaged with, or been observed by this individual — a false oath administered before a Commissioner of Oaths;
 - (b) The Applicant's diagnosed depression and PTSD were dismissed as a "cynical excuse" and an "afterword";
 - (c) The Applicant was labelled as having an "untruthful character"; and
 - (d) His clinical and professional conduct was described as "sloppiness" and a "fishing expedition", with a demand that his application be dismissed "with cost".
2. This affidavit was filed the day after the Applicant's board-level escalation. The characterisation of a SANC-registered NQF Level 8 nurse's documented psychiatric condition as a "cynical excuse" in a sworn document constitutes:
 - (a) discrimination on the ground of disability under section 6(1) of the EEA;

- (b) a violation of the right to dignity under section 10 of the Constitution of the Republic of South Africa, 1996; and
 - (c) evidence of the bad faith that pervaded the entire employment relationship and that renders the employer's conduct unlawful for purposes of the costs prayer.
3. The filing of this affidavit, combined with the cumulative conduct described above, eliminated any objective possibility of restoring the employment relationship and constituted the final act rendering continued employment intolerable within the meaning of section 186(1)(e) of the LRA.

PART L: RESIGNATION — AUTOMATICALLY UNFAIR CONSTRUCTIVE DISMISSAL

1. On 11 December 2025, the Applicant gave formal notice of resignation, effective 12 December 2025, citing the employer's sworn affidavit as the final intolerable act. The resignation letter is attached as Annexure "S".
2. The employment situation had become objectively intolerable for the purposes of section 186(1)(e) of the LRA due to the cumulative effect of the following:
 - (a) The unlawful salary deduction of 40.47%, made without consultation and in breach of the statutory cap, while the employer was in possession of the Applicant's psychiatric assessment confirming medical vulnerability;
 - (b) Discrimination and harassment on the grounds of gender identity and sexual orientation (the "Wilma" incident), followed by a whitewash investigation;
 - (c) Retaliation and insubordination labelling following a bona fide protected disclosure of a patient safety risk;
 - (d) The recorded admission of retaliatory intent by Jones on 31 October 2025;
 - (e) Over 30 days of institutional silence on formal grievances, demonstrating the futility of internal remedies;
 - (f) The executive "festive break" delay and the Chief Risk Officer's gatekeeping of Board-level escalation;
 - (g) The sworn, defamatory affidavit attacking the Applicant's documented psychiatric condition and professional character; and
 - (h) The Board's failure to respond substantively to the Priority 1 Material Risk Report.
3. The Applicant's resignation constitutes a constructive dismissal within the meaning of section 186(1)(e) of the LRA. The dominant reason for the dismissal — pervading all of the conduct described above — is the Respondents' retaliation against the Applicant for making protected disclosures as defined in the PDA. The dismissal is accordingly automatically unfair in terms of section 187(1)(h) of the LRA.
4. Alternatively, if the Court finds that the dismissal does not fall within section 187(1)(h), the Applicant contends that the dismissal was automatically unfair under section 187(1)(f) of the LRA in that the reason for the dismissal relates to the Applicant's disability (diagnosed psychiatric condition) — an enumerated ground under section 6 of the EEA.
5. Further alternatively, if the Court finds that the dismissal is not automatically unfair, the Applicant submits that it was substantively and procedurally unfair within the meaning of section 185 of the LRA, for all the reasons set out above.

PART M: CAREER DESTRUCTION — INABILITY TO PRACTISE NURSING

1. As a direct and proximate result of the unlawful 40.47% salary deduction in July 2025, the Applicant was rendered financially destitute. He could not afford to pay his annual registration fee to the South African Nursing Council (“SANC”) and consequently his nursing registration was not renewed.
2. As a result, the Applicant is currently barred from practising as a registered nurse — constituting a deprivation of his professional livelihood and career destruction.
3. The Applicant had been accepted into the Postgraduate Diploma in Occupational Health Nursing at the Cape Peninsula University of Technology (“CPUT”) for the 2026 academic year. Due to the Respondents’ financial sabotage, he could not pay the registration fee and lost that professional development opportunity. The acceptance letter is attached as Annexure “T”.
4. The loss of nursing registration and the lost CPUT opportunity constitute recoverable consequential damages caused by the unlawful deduction and retaliatory conduct. They are pleaded as damages under section 4 of the PDA (occupational detriment) and under the general damages jurisdiction of this Court.

PART N: POST-RESIGNATION VICTIMISATION

1. After the Applicant’s resignation, the Respondents continued to cause him harm through the following acts:
 - (a) UIF Non-Declaration: UIF contributions were deducted from the Applicant’s June 2025 salary but the Respondents failed to declare his employment for that month. The uFiling portal continues to reflect ‘No Information’ for June 2025 (Annexure “U”). This constitutes a contravention of section 5 of the Unemployment Insurance Contributions Act 4 of 2002, as well as potential fraud under section 68 of the Unemployment Insurance Act 63 of 2001;
 - (b) Misrepresentation of Certificate of Service: The Certificate of Service designates the Applicant as ‘Care Coordinator’ rather than ‘Care Manager’ or ‘Health Services Management Nurse Specialist’. The Respondents have refused to correct this despite the Applicant’s formal demand and have withheld the recording of the internal ‘Naming Convention’ meeting (Annexure “V”). This constitutes a contravention of section 42 of the BCEA; and
 - (c) Withholding of Exit Documents: The Respondents delayed providing the UI-19 form and retirement fund claim forms, causing additional financial prejudice to an already destitute Applicant.

PART O: REGULATORY AND THIRD-PARTY CONFIRMATION OF MATERIAL FACTS

1. The following regulatory and institutional acknowledgments independently corroborate the material facts set out in this Statement of Claim:
 - (a) Council for Medical Schemes (CMS): Formally identified ‘Administrative Misconduct and Ethical Failure’ in relation to the Gexus/DMS integration gap and referred the matter to HPCSA and SANC (Annexure “W”);
 - (b) South African Human Rights Commission (SAHRC): Acknowledged the ‘seriousness of the allegations’ regarding victimisation and financial prejudice, and

- made referrals to the CCMA, Labour Court, and Department of Employment and Labour (Annexure “X”);
- (c) JSE Issuer Regulation Division: Acknowledged receipt of the Applicant’s 325-page evidentiary bundle and has engaged the First Respondent for a response regarding potential SENS disclosure failures;
 - (d) B-BBEE Commission: Allocated Case No. 5/02/2026 for investigation of the B-BBEE fronting allegation;
 - (e) Department of Employment and Labour: Allocated an integrated inspection for UIF non-compliance (DEL IES Ref, 16 February 2026); and
 - (f) SAPS: Criminal case CAS 705/3/2026 registered at SAPS Delft on 19 March 2026 and transferred to SAPS Woodstock on 25 March 2026 for investigation of statutory fraud under the Unemployment Insurance Contributions Act and the BCEA.
2. A full Master Chronological Register containing 148 entries from 11 January 2024 to 2 April 2026, summarising all material events, institutional responses, and patterns of deflection, is attached as Annexure “Z”.

PART P: SUMMARY OF CAUSES OF ACTION

The Applicant’s causes of action are as follows:

- (a) Primary claim: Automatically unfair constructive dismissal under sections 186(1)(e) and 187(1)(h) of the LRA — the dominant reason for the dismissal was retaliation for protected disclosures as defined in the PDA;
- (b) Alternative claim A: Automatically unfair dismissal under sections 186(1)(e) and 187(1)(f) of the LRA — the dominant reason relates to the Applicant’s disability;
- (c) Alternative claim B: Constructive and substantively/procedurally unfair dismissal under sections 185 and 186(1)(e) of the LRA;
- (d) Unfair discrimination and harassment under sections 6(1), 6(3) and 60 of the EEA — on the grounds of sexual orientation, gender identity and disability;
- (e) Occupational detriment for making protected disclosures under sections 3 and 4 of the PDA;
- (f) Contravention of section 34(2) of the BCEA — unlawful salary deduction (also pleaded in Case No. 2026-077546);
- (g) Contravention of section 42 of the BCEA — failure to provide a true and accurate Certificate of Service; and
- (h) Contravention of section 5(1) of the Unemployment Insurance Contributions Act 4 of 2002 — failure to declare contributions for June 2025.

PART Q: QUANTIFICATION OF LOSS

Head of Damage / Claim	Statutory Basis	Amount (ZAR)
Automatically unfair dismissal compensation (24 months × R42,796.13)	LRA s194(3)	R1,027,107.12
Unlawful salary deduction — principal amount	BCEA s34(2) / s77A	R14,811.77

Interest on unlawful deduction (prescribed rate from 23 Jul 2025)	Prescribed Rate Act	To be calculated
EEA — solatium for injury to dignity (sexual orientation / disability discrimination)	EEA s50(2)	R350,000.00
EEA — compensation for failure to reasonably accommodate	EEA s50(2)	To be assessed
PDA — compensation for occupational detriment (financial loss, SANC registration, CPUT)	PDA s4	To be assessed
Consequential damages: lost CPUT programme (registration fees and costs)	PDA s4 / general damages	To be quantified
Career destruction: loss of nursing registration and future earning capacity	PDA s4 / general damages	To be assessed
TOTAL (known components)		R1,391,918.89 plus assessed amounts

Items marked 'to be assessed' or 'to be quantified' will be supplemented by expert evidence and/or further particulars as the matter develops. The Applicant reserves the right to amend the quantum of the claim upon receipt of further documentation from the Respondents.

PART R: RELIEF SOUGHT

A. Declaratory Relief

- R.1.** A declaration that the Applicant's dismissal constitutes an automatically unfair constructive dismissal within the meaning of sections 186(1)(e) and 187(1)(h) of the LRA, on the grounds that the dominant reason for the dismissal was retaliation by the Respondents for the Applicant making protected disclosures as defined in the PDA.
- R.2.** Alternatively to R.1, a declaration that the dismissal was automatically unfair within the meaning of sections 186(1)(e) and 187(1)(f) of the LRA on the grounds that a dominant reason for the dismissal relates to the Applicant's disability.
- R.3.** Further alternatively, a declaration that the dismissal was unfair within the meaning of section 185 of the LRA.

B. Compensation and Damages

- R.4.** An order that the First and/or Second Respondents pay the Applicant compensation equal to 24 months' remuneration as provided for in section 194(3) of the LRA for an automatically unfair dismissal, calculated at his monthly cost-to-company of R42,796.13 per month, amounting to R1,027,107.12, alternatively the maximum permissible compensation amount.
- R.5.** An order that the First and/or Second Respondents reimburse the Applicant the unlawfully deducted amount of R14,811.77 together with interest at the prescribed rate calculated from 23 July 2025 to the date of final payment, alternatively that this relief be granted in Case No. 2026-077546.
- R.6.** An order that the First and/or Second Respondents pay the Applicant compensation in terms of section 50(2) of the EEA for unfair discrimination on the grounds of sexual orientation, gender identity and disability, including solatium for

injury to dignity in the amount of R350,000, alternatively such amount as this Court deems just and equitable.

- R.7.** An order that the First and/or Second Respondents pay the Applicant compensation for occupational detriment under section 4 of the PDA, including compensation for all financial loss, career destruction, loss of nursing registration, and the lost opportunity to pursue the CPUT Postgraduate Diploma in Occupational Health Nursing, in amounts to be assessed or proved.

C. Corrective Orders

- R.8.** An order directing the First and/or Second Respondents to issue a corrected Certificate of Service reflecting the Applicant's true designation as Health Services Management Nurse Specialist / Case Manager (NQF Level 8) in compliance with section 42 of the BCEA, within 10 business days of the grant of this order.
- R.9.** An order directing the First and/or Second Respondents to remit the outstanding UIF contributions for June 2025 to the Unemployment Insurance Fund and to provide the Applicant with a corrected UI-19 form within 10 business days, in compliance with the Unemployment Insurance Contributions Act 4 of 2002 and section 37 of the Unemployment Insurance Act 63 of 2001.

D. Costs

- R.10.** Costs of suit on an attorney-and-client scale, in terms of section 162 of the LRA and the inherent jurisdiction of this Court, having regard to:
- (a) the Respondents' bad faith conduct, including the filing of a defamatory opposing affidavit attacking the Applicant's documented psychiatric condition under oath;
 - (b) the systematic institutional cover-up, whitewash investigations, and 30+ days of deliberate institutional silence;
 - (c) the post-resignation victimisation through misrepresentation of the Certificate of Service and UIF non-declaration; and
 - (d) the Chief Risk Officer's gatekeeping communications designed to prevent Board-level accountability.

E. Further and/or Alternative Relief

- R.11.** Further and/or alternative relief as this Honourable Court deems just and equitable in the circumstances.

RESERVATION OF RIGHTS REGARDING PERSONAL LIABILITY

The Applicant expressly reserves the right to apply for joinder of any director, officer, or employee of the Respondents (including Bruno Fernandes, Dr Nkateko Munisi, Alice le Roux, Gerald Van Wyk, LSM Mpumlwana, Mary-Ann Jones, Mapule Mashele, Xolile Vincent Manyathi, and Lisa Mari) in the event that the Court orders a personal liability enquiry under section 162 of the Companies Act 71 of 2008, section 60 of the EEA, or section 4 of the PDA, or in any separate proceedings as the evidence may warrant. No criminal or perjury proceedings are sought in this Statement of Claim.

PART 5: VERIFICATION AND DECLARATION

I, WILBUR WILLIAM MATTHEE, the Applicant herein, declare that the facts set out in this Statement of Claim are within my personal knowledge, save where indicated to the contrary, and are to the best of my knowledge true and correct.

Signature	_____
Full Name	WILBUR WILLIAM MATTHEE
Identity Number	890903 5151 087
Capacity	Applicant (Self-Represented)
Email	info@ethichawks.co.za
Telephone	069 635 1435 / 063 378 8782
Date	9 April 2026, Cape Town

SCHEDULE OF ANNEXURES

Tab	Description	Date
"A"	Interview invitations for 'Specialist: Care Manager' role	January 2024
"B"	Assessment instructions — Specialist: Care Manager	29 January 2024
"C"	Fingerprint criminal check booking confirmation	21 February 2024
"D"	Employment contract — 'Care Coordinator' (Grade B4M1)	9 April 2024
"E"	First Aider roster and EHS directives drafted by Applicant	25 July 2025
"F"	Sick note — Dr Jacques Malan (Akeso Stepping Stones Clinic)	1 April 2025
"G"	Mental health disclosure to Mapule Mashele (formal written notice of disability)	16 May 2025
"H"	Jones: "we do not apply staggering of money owed"	16 April 2025
"I"	Payslip — July 2025 (R14,811.77 deduction; 40.47% of gross salary)	July 2025
"J"	AOD Policy confirming 25% cap + "what is illegal?" exchange	24 July 2025
"K"	"Wilma" Microsoft Teams message (screenshot, team-wide channel)	23 September 2025
"L"	Formal discrimination complaint lodged with HR	25 September 2025
"M"	Mashele investigation closure report ("typo" finding)	1 October 2025
"N"	Gexus/DMS root cause analysis and protected disclosure	23 October 2025
"O"	Transcript — 31 October 2025 meeting (retaliatory admission by Jones)	31 October 2025
"P"	Formal grievance against Jones	2 November 2025
"Q"	Executive escalation bundle to leadership (32-page evidence bundle)	4 December 2025
"R"	Employer's opposing affidavit — CCMA (Xolile Vincent Manyathi)	10 December 2025
"S"	Resignation letter	11 December 2025
"T"	CPUT Postgraduate Diploma acceptance letter	2026
"U"	uFiling screenshot — 'No Information' for June 2025	2026
"V"	Certificate of Service (disputed) + Naming Convention request	January 2026
"W"	CMS referral — 'Administrative Misconduct and Ethical Failure'	2026
"X"	SAHRC acknowledgment and referrals	2026
"Y"	CCMA Certificates of Non-Resolution (WECT23564-25 and WECT24486-25)	9 January 2026
"Z"	EthicHawks Master Chronological Register (148 entries, 11 Jan 2024 – 2 Apr 2026)	3 April 2026
"P1 RISK"	NQF Mandate / SAQA Statutory Obligation to Report (ELO mapping; qualification transcript)	8 April 2026
"PDA BILL"	Protected Disclosures Amendment Bill, 2026 (Government Gazette, 8 April 2026)	8 April 2026

END OF STATEMENT OF CLAIM